

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.

★ OCT 31 2011 ★

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TYSHAWN CORBETT,

Plaintiff,

v.

BROOKLYN OFFICE
COMPLAINT &
JURY DEMAND

CV11-5291

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DETECTIVE
JASON COHEN, Shield # 01750,
Brooklyn North Narcotics District,
NEW YORK CITY POLICE DETECTIVE
FELIX ORTIZ, Brooklyn North Narcotics District,
NEW YORK CITY POLICE SERGEANT
MICHAEL WHITE, Brooklyn North Narcotics District,
NEW YORK CITY POLICE OFFICERS
JOHN DOE ONE, TWO and THREE,
Brooklyn North Narcotics District,
Defendant(s).

WEINSTEIN, J.

POLLAK, M.J.

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PRELIMINARY STATEMENT

1. This is a Civil Rights action in which Plaintiff, TYSHAWN CORBETT, seeks redress for the Defendant's violation of his rights secured by the Civil Rights Act of 1866 and 1871, 42 U.S.C. 1981 and 1983 and of the rights secured by the Fourth Amendment, and by the Equal Protection Clauses of the Fourteenth Amendment to the United States Constitution and/or rights secured by under the Laws and Constitution of the State of New York.

JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. Sections 1331, 1343(3), this being an action seeking redress for the violation of Plaintiff's Constitutional and Civil Rights. The amount of damages in controversy exceeds Seventy Five Thousand (\$75,000.00) Dollars, exclusive of interest and costs.

3. Plaintiff's claim for declaratory and injunctive relief is authorized by 28 U.S.C. Sections 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

4. The Plaintiff further invokes this Court's pendant jurisdiction, pursuant to 28 U.S.C. Section 1367(a), over any and all State claims and as against all parties that are so related to claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

5. The Plaintiff demands a trial by jury on each and every one of the claims pleaded herein.

VENUE

6. Venue is proper for the United States District Court of the Eastern District of New York pursuant to 28 U.S.C. Sections 1391 (a), (b) and (c).

PARTIES

7. Plaintiff, TYSHAWN CORBETT is a United States Citizen and resident of the United States, and is and at all times relevant herein is a resident of the State of New York.

8. Defendants, NEW YORK CITY POLICE DETECTIVES JASON COHEN, FELIX ORTIZ, NEW YORK CITY POLICE SERGEANT MICHAEL WHITE and NEW YORK CITY POLICE OFFICERS JOHN DOE Number ONE, TWO and THREE, upon information and belief are all assigned to the New York City Police Department's BROOKLYN NORTH NARCOTICS DIVISION, Command 547 and are at all times relevant, officers and employees/agents of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK. Defendants, NEW YORK CITY POLICE DETECTIVES JASON COHEN, FELIX MARTINEZ, SERGEANT MICHAEL WHITE and NEW YORK CITY POLICE OFFICERS JOHN DOE ONE,

TWO and THREE are sued individually and in their official capacities. At all times relevant Defendants NEW YORK CITY POLICE DETECTIVES JASON COHEN, FELIX MARTINEZ, NEW YORK CITY POLICE SERGEANT MICHAEL WHITE and NEW YORK CITY POLICE OFFICERS JOHN DOE ONE, TWO and THREE were acting under the color of State Law in the course and scope of their duties and functions as agents, servants, employees and officers of THE NEW YORK CITY POLICE DEPARTMENT and otherwise performed and engaged in conduct incidental to the performance of their lawful duties. Defendants NEW YORK CITY POLICE DETECTIVES JASON COHEN, FELIX MARTINEZ, NEW YORK CITY POLICE SERGEANT MICHAEL WHITE and NEW YORK CITY POLICE OFFICERS JOHN DOE ONE, TWO and THREE were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, and incidental to the lawful pursuit of their duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

9. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department and the employment of Police Officers as said risk attaches to the public consumers of the services provided by Defendant NEW YORK CITY POLICE DEPARTMENT.

10. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is nevertheless a municipal entity created and authorized under the laws of the State of New York. It is

authorized by law to carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers.

STATEMENT OF FACTS

11. On November 2, 2010 at approximately 8:30 p.m., Plaintiff TYSHAWN CORBETT, who resides in Kings County, was seated in the driver's seat of his automobile parked outside of 384 Essex Street located in Brooklyn New York listening to music when he observed four members of the NEW YORK CITY POLICE DEPARTMENT approach his vehicle with their weapons drawn and pointed at him. The police officers, including named Defendants NEW YORK CITY POLICE DETECTIVES JASON COHEN and FELIX MARTINEZ, ordered the Plaintiff out of the vehicle. The Plaintiff exited the vehicle as ordered, and was immediately thrown to the ground by members of the NEW YORK CITY POLICE DEPARTMENT, one of whom placed a knee placed in his back. The Plaintiff was then handcuffed, with his hands behind his back. While the Plaintiff was on the ground he observed members of THE NEW YORK CITY POLICE DEPARTMENT run into 384 Essex Street. The Plaintiff asked the police why he was being arrested and was told to "shut up". After being held on the ground for approximately five minutes, the Plaintiff was placed inside an unmarked police van. The Plaintiff was never asked for identification by any members of THE NEW YORK CITY POLICE DEPARTMENT, including named Defendant DETECTIVES COHEN and MARTINEZ. After several minutes the Plaintiff observed members of THE NEW YORK CITY POLICE DEPARTMENT exit 384 Essex Street with several of the Plaintiff's friends and their family members. These individuals were placed inside the van with the Plaintiff. While the Plaintiff was inside the van a member of THE NEW YORK CITY POLICE DEPARTMENT asked the

Plaintiff "don't you still live in that house right there?" pointing to #399 Essex Street. When the Plaintiff said he did not live there the officer stated "we should run in there right now." After being in the van for approximately thirty minutes, the Plaintiff was taken to the 75th precinct where he was fingerprinted, photographed by members of THE NEW YORK CITY POLICE DEPARTMENT. Before the Plaintiff was placed in a holding cell at the 75th precinct he was taken into a bathroom on the first floor located directly across from the holding cells by Defendants NEW YORK CITY POLICE OFFICERS JOHN DOES Numbered ONE, TWO and THREE. Defendant Officers JOHN DOE ONE TWO and THREE, two of whom were African-American and one of whom was Caucasian, proceeded to order Plaintiff to remove all his clothing and bend over and squat. While at the 75th precinct the Plaintiff was informed that he was being charged with violating New York Penal Law Section 220.16 (Criminal Possession of a Controlled Substance with Intent to Sell), by Defendant DETECTIVE JASON COHEN, after Defendant DETECTIVE COHEN received the approval of Supervising Officer, Defendant NEW YORK CITY POLICE SERGEANT MICHAEL WHITE. Defendant NEW YORK CITY POLICE SERGEANT WHITE gave the approval for the arrest and charging of the Plaintiff even though no contraband was recovered from the Plaintiff or in the Plaintiff's possession by Defendant DETECTIVE FELIX ORTIZ, who was the vouchering officer for other evidence alleged to have been recovered from inside 384 Essex Street, and even though Plaintiff was not inside of 384 Essex Street at the time of his arrest by the named Defendant Officers, and did not live there or have any property inside the premises which would lead to a reasonable conclusion that the Plaintiff resided in the premises searched by members of THE NEW YORK CITY POLICE DEPARTMENT. The Plaintiff remained at the 75th precinct until approximately 1:00 a.m., whereafter he was transported to 100 Centre Street in Manhattan. The

Plaintiff was again searched, photographed and fingerprinted at 100 Centre Street by members of THE NEW YORK CITY POLICE DEPARTMENT. After being in custody for approximately thirty one hours, the Plaintiff was released from the custody of THE NEW YORK CITY POLICE DEPARTMENT without ever seeing a Judge or speaking with an attorney. On November 5, 2010 the Plaintiff received a "prosecution was declined" letter from THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE.

FIRST FEDERAL CLAIM

Violation of the Rights Secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth Amendments to the United States Constitution-False Arrest

12. The Plaintiff incorporates by reference the allegations set forth in paragraphs One (1) through Eleven (11) as if fully set forth herein.

13. Upon information and belief, the conduct of Defendant NEW YORK CITY POLICE DETECTIVE JASON COHEN, acting under color of State Law, violated section 42 U.S.C. 1983 by unlawfully detaining, handcuffing, arresting and searching Plaintiff, without probable cause.

14. That the actions of Defendant NEW YORK CITY POLICE DETECTIVE JASON COHEN occurred in and during the course and scope of his duties and functions as a New York City Police Officer, and while acting as an agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

SECOND FEDERAL CLAIM

Violation of Rights Secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth Amendments to the United States Constitution-False Arrest

15. The Plaintiff incorporates by reference the allegations set forth in paragraphs One (1) through Fifteen (14) as if fully set forth herein.

16. That upon information and belief, the conduct of Defendant NEW YORK CITY POLICE DETECTIVE FELIX ORTIZ, acting under the color of State Law, violated Section 42 U.S.C. 1983 by unlawfully handcuffing, arresting and detaining Plaintiff, without probable cause.

17. That the actions of Defendant NEW YORK CITY POLICE DETECTIVE FELIX ORTIZ occurred in and during the course and scope of his duties and functions as a New York City Police Officer, and while acting as agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

THIRD FEDERAL CLAIM

Violation of Rights secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth

Amendment to the United States Constitution-False Arrest

18. The Plaintiff incorporates by reference the allegations set forth in paragraphs One (1) through Seventeen (17) as if fully set forth herein.

19. That upon information and belief, the conduct of Defendant NEW YORK CITY POLICE SERGEANT MICHAEL WHITE, acting under color of State Law, violated Section 42 U.S.C. 1983 by unlawfully authorizing the arrest, and subsequent strip search of Plaintiff without lawful reason or cause.

20. That the actions of Defendant NEW YORK CITY POLICE SERGEANT MICHAEL WHITE occurred in and during the scope of his duties and functions as a New York City Police Officer, and while acting as agent and employee of THE NEW YORK CITY POLICE

DEPARTMENT and Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

FOURTH FEDERAL CLAIM

Violation of Rights secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth

Amendment to the United States Constitution-Unlawful Strip Search

21. The Plaintiff incorporates by reference each of the allegations set forth in paragraphs One (1) through Twenty(20) as if fully set forth herein.

22. That upon information and belief, the conduct of Defendant NEW YORK CITY POLICE OFFICERS JOHN DOES ONE, TWO and THREE, acting under the color of State Law, violated Section 42 U.S.C. by conducting the unlawful detention and strip search of Plaintiff, without probable cause or basis in law or fact.

FIRST STATE LAW CLAIM

23. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Twenty Two (22) as if fully set forth herein.

24. That the actions of Defendant NEW YORK CITY POLICE DETECTIVE JASON COHEN resulted in the false arrest, detention, search and imprisonment of Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SECOND STATE LAW CLAIM

25. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Twenty Four (24) as if fully set forth herein.

26. That the actions of Defendant New York City Police Officer JOHN DOE NUMBERS ONE, TWO and THREE resulted in the intentional infliction of emotional distress to Plaintiff, and

causing the aforementioned and hereinafter mentioned harm to Plaintiff.

THIRD STATE LAW CLAIM

27. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Twenty Six (26) as if fully set forth herein.

28. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE DETECTIVE JASON COHEN resulted in the false arrest, detention and searches of Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FOURTH STATE LAW CLAIM

29. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Twenty Eight (28) as if fully set forth herein.

30. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE DETECTIVE FELIX ORTIZ resulted in the false arrest, detention and search and seizure of Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FIFTH STATE LAW CLAIM

31. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty (30) as if fully set forth herein.

32. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant(s) NEW YORK CITY POLICE OFFICERS JOHN DOE NUMBERS ONE, TWO, and THREE resulted in the unlawful strip search of the Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SIXTH STATE LAW CLAIM

33. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty Two (32) as if fully stated herein.

34. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORKCITY POLICE SERGEANT MICHAEL WHITE resulted in the unlawful detention, search and arrest of Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SEVENTH STATE LAW CLAIM

35. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty Four (34) as if fully set forth herein.

36. That the actions of Defendant NEW YORK CITY POLICE DETECTIVE JASON COHEN intentionally inflicted emotional distress upon Plaintiff, causing Plaintiff to suffer severe anxiety, public humiliation and embarrassment.

EIGHTH STATE LAW CLAIM

37. Plaintiff incorporates by reference each of the allegations contained in paragraphs One (1) through Thirty Six (36) as if fully set forth herein.

38. That the actions of Defendant New York City Police Officer JOHN DOE NUMBERS ONE, TWO and THREE intentionally inflicted emotional distress upon Plaintiff, causing Plaintiff to suffer extreme anxiety, public humiliation and embarrassment.

NINTH STATE LAW CLAIM

39. The Plaintiff incorporates by reference each of the allegations contained in paragraphs One (1) through Thirty Eight (38) as if fully set forth herein.

40. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant(s) NEW YORK CITY POLICE OFFICERS JOHN DOE ONE, TWO and THREE in effectuating the unlawful strip search of Plaintiff without lawful reason or cause, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

TENTH STATE LAW CLAIM

41. Plaintiff incorporates by reference each of the allegations contained in paragraphs One (1) through Forty (40) as if fully set forth herein.

42. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant NEW YORK CITY POLICE DETECTIVE JASON COHEN in effectuating the search, arrest, and detention of Plaintiff without probable cause, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

TENTH STATE LAWCLAIM

43. Plaintiff incorporates by reference each of the allegations contained in paragraphs One (1) through Forty Two (42) as if fully set forth herein.

44. That the Defendant NEW YORK CITY POLICE SERGEANT MICHAEL WHITE intentionally inflicted emotional distress upon Plaintiff by authorizing Plaintiff's arrest, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

ELEVENTH STATE LAW CLAIM

45. Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Forty Four (46) as if fully set forth herein.

46. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant NEW YORK CITY POLICE DETECTIVE FELIX

ORTIZ, in conducting the unlawful detention, search and arrest of Plaintiff without legal reason or probable cause, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

TWELFTH STATE LAW CLAIM

47. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Forty Six (46) as if fully set forth herein.

48. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant NEW YORK CITY POLICE SERGEANT MICHAEL WHITE, in authorizing the unlawful search, detention and arrest of Plaintiff without legal reason or probable cause, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

WHEREFORE, the Plaintiff demands the following relief jointly and severably against all Defendants:

1. Compensatory Damages for Plaintiff.
2. Punitive Damages against Defendant New York City Police Officers JASON COHEN, FELIX ORTIZ, MICHAEL WHITE and OFFICERS JOHN DOE NUMBER ONE, TWO and, THREE.
3. A Court Order pursuant to 42 U.S.C. 1998 that the Plaintiff is entitled to costs of the instant action, and Attorney's fees.
4. Such other and further relief as the Court may deem necessary and appropriate, including declaratory relief.

Dated: October 28, 2011



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